

own everyday life; on the witness stand, usually he cannot speak either for or against without being attached, by the drama itself, to the accused's dilemma.

~~This fiction-form~~ ^P ~~T~~ this arranged conflict: could it be otherwise? Perhaps some day.

Meantime, it serves to remind the Law that there is always a deeper ordeal for all concerned than the Law's own statement of the case -- an ordeal from which the Law itself sprang. The Anglo-American tradition says that a man is presumed innocent until proved guilty, but that is a legal way of warning ourselves that suspicion is fundamentally more powerful than proof; that though the acquitted may have cast off legal suspicion in the end, they can never cast off its effects. The issue seldom affords the innocent a chance to show why suspicion brought them here in the first place. A man brought to trial on suspicion of committing an offense which might cost him his head has more than the legal burden of refuting the evidence against him; indeed, often the accused has the burden of explaining, by appearance and manner, why he has a right to live.

An innocent spectator to an accident [✓] may be mistaken in what he thought he saw, and psychologists lay the mistake to his being "unobservant", ^{while} lawyers lay it to the idea that "eyewitness testimony is notoriously unreliable". [✓] Yet some brave witnesses whose reputation for telling the truth is [✓] impeccable will lie under oath. And some witnesses, having resolved to tell the truth, will twist their testimony beyond all recognition. Why? Because they get [✓] flustered? Because the fiction-form appeals to their imagination? It's hard to say.